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Case Number: 25SMCV05503 Hearing Date: July 8, 2026 Dept: 205

Superior

Court of California

County

of Los Angeles – West District

Beverly Hills Courthouse / Department 205

FRANK TUFANO,

Plaintiff,

v.

MEHRYAR RAY

TABAN MD, et al.,

Defendants.

Case No.:

25SMCV05503

Hearing Date: July 8, 2026

[TENTATIVE]

order RE:

Specially appearing DEFENDANT

AMERICAN SOCIETY OF OPHTHALMIC

PLASTIC AND RECONSTRUCTIVE

SURGERY'S MOTION TO QUASH

SERVICE OF SUMMONS FOR LACK OF

PERSONAL JURISDICTION

BACKGROUND

Plaintiff Frank Tufano ("Plaintiff")

alleges Defendant Mehryar Ray Taban MD ("Defendant") performed a cosmetic eye procedure on Plaintiff on November 29, 2023, which left Plaintiff deformed and near blind. (Compl., ¶ 1, 5.) According to the Complaint, as of November 12, 2024, Plaintiff has had five attempted corrective surgeries. (Id. at ¶ 16.)

On October 23, 2025, Plaintiff filed his Complaint against Defendants Mehryar Ray Taban MD, Mehryar Taban MD Inc., The Medical Board of California, American Academy of Ophthalmology, American Board of Cosmetic Surgery, American Society of Ophthalmic Plastic and Reconstructive Surgery, Lavelly & Singer PC, and Kjar, McKenna, & Stockalper, LLP alleging claims based in negligence, informed consent, standard of care for surgical errors, fraudulent concealment, negligence per se, negligent infliction of emotional distress, medical negligence, and tortious interference.

On May 22, 2026, specially appearing Defendant American Society of Ophthalmic Plastic and Reconstructive Surgery ("American Society") filed this Motion to Quash Service of Summons for Lack of Personal Jurisdiction ("Motion").

No opposition was filed to this Motion.

LEGAL

STANDARD

A defendant may move to quash service of summons on the ground of

lack of jurisdiction of the court over him or her. (Civ. Proc. Code § 418.10, subd. (a)(1).) When jurisdiction is challenged by a nonresident defendant, the burden of proof is upon the plaintiff to demonstrate that “minimum contacts” exist between defendant and the forum state to justify imposition of personal jurisdiction. (Milhon v. Superior Court (1985) 169 Cal.App.3d 703, 710.) If the plaintiff meets his or her burden and can prove by a preponderance of the evidence the factual bases justifying the exercise of jurisdiction, the burden shifts to the defendant to demonstrate that the exercise of jurisdiction would be unreasonable. (Buchanan v. Soto (2015) 241 Cal.App.4th 1353, 1362.)

To satisfy its initial burden of proof, a “plaintiff must do more than merely allege jurisdictional facts; plaintiff must provide affidavits and other authenticated documents demonstrating competent evidence of jurisdictional facts.” (BBA Aviation PLC v. Superior Court (2010) 190 Cal.App.4th 421, 428–29 (citing In re Automobile Antitrust Cases (2005) 135 Cal.App.4th 100, 110). When evaluating the evidence supplied in support of and in opposition to a motion to quash, a trial court is not required to draw all reasonable inferences in favor of the plaintiff because to do so would improperly “lighten plaintiffs’ burden of proof of jurisdictional facts.” (Centerpoint Energy, Inc. v. Superior Court (2007) 157 Cal.App.4th 1101, 1119.)

DISCUSSION

Plaintiff’s Burden

Here,

Plaintiff has failed to meet his burden of proof to demonstrate that “minimum contacts” exist between defendant and the forum state to justify imposition of personal jurisdiction. (Milhon v. Superior Court (1985) 169 Cal.App.3d 703, 710.) First, Plaintiff has failed to file an opposition to this Motion. Second, Plaintiff’s Complaint merely alleges that Defendant Taban is a member of the American Society and that “No one knows your eyes and face like an ASOPRS Surgeon. Trust your eyes and face to a surgeon who specializes in oculofacial plastic surgery. All ASOPRS members are board certified ophthalmologists who have completed advanced training in eyelid, orbit, tear duct system and facial cosmetic and reconstructive surgery. We invite you to learn more about the field of oculofacial plastic surgery and find a qualified

member surgeon in your area below.” (Compl., ¶ 40.) Plaintiff has supplied no evidence such as affidavits or other authenticated documents demonstrating competent evidence of jurisdictional facts. (BBA Aviation PLC, supra, 190 Cal.App.4th at pp. 428–29.)

Because Plaintiff has failed to meet his burden of proof to establish personal jurisdiction, the Court grants American Society’s Motion.

Even without the foregoing, American Society has established the Court does not have personal jurisdiction.

General Jurisdiction

There are two kinds of personal jurisdiction, general and specific.

General jurisdiction over a corporation exists when that corporation might be “fairly regarded as at home” in that state. (Brue v. Shabaab (2020) 54 Cal.App.5th 578, 590.) Traditionally, a corporation or limited liability company is “at home” in its place of incorporation and its principal place of business. (Id. at p. 590.) But in an exceptional case, a corporation’s operations in a forum other than its formal place of incorporation or principal place of business may be so substantial and of such a nature as to render the corporation at home in that state. (Ibid.) In other words, general jurisdiction over a corporate defendant exists when the corporation’s “affiliations with the State are so ‘continuous and systematic’ as to render it essentially at home in the forum State.” (Daimler AG v. Bauman (2014) 571 U.S. 117, 139.) To test that possibility, courts look to a variety of factors, including “maintenance of offices, the presence of employees, use of bank accounts and marketing or selling products in the forum state, to analyze whether a corporation’s contacts render it effectively at home in that state.” (Brue, supra, 54 Cal.App.5th at pp. 590-591.)

Here, American Society is a Florida not-for-profit corporation. (Kehn Decl., ¶ 8.) Its headquarters are located in St. Paul, Minnesota. (Id. at ¶ 9.) It does not conduct business in California. (Id. at ¶ 13.) American Society is not registered with the California Secretary of State to conduct business in California. (Id. at ¶ 12.) American

Society has no offices or employees in California. (Id. at ¶ 10, 11.) American Society has never maintained an office in California. (Id. at ¶ 15.) American Society has only ever maintained offices in Minnesota. (Ibid.)

American Society has demonstrated that its headquarters are in Minnesota and that it does not conduct business in California. American Society is not registered to conduct business in California. (Id. at ¶ 12.) It has no offices or employees in California. (Id. at ¶ 10, 11.) American Society has no registered agents in California, nor does it own, lease, insure, or maintain offices, financial accounts, investments, or telephone numbers in California. (Id. at ¶ 16.) American Society also does not market, advertise, sell, or ship any goods or services to California. (Id. at ¶ 14.) Thus, there is no general jurisdiction over American Society.

Accordingly, American Society has established the Court does not have general jurisdiction.

Specific Jurisdiction

For specific jurisdiction, “courts consider the relationship among the defendant, the forum and the litigation.” (Snowney v. Harrah’s Entertainment, Inc. (2005) 35 Cal.4th 1054, 1062.) A court may exercise specific jurisdiction over a nonresident defendant only if: “(1) the defendant has purposefully availed himself or herself of forum benefits; (2) the controversy is related to or arises out of the defendant’s contacts with the forum, and (3) the assertion of personal jurisdiction would comport with fair play and substantial justice.” (Ibid.)

A. Purposeful Availment

To establish purposeful availment, the plaintiff must show the defendant acted to “purposefully avail itself of the privilege of conducting activities within the forum.” (Burger King Corp. v. Rudzewicz (1985) 471 U.S. 462, 474–75.) Purposeful availment may not be based “only on ‘random,’ ‘fortuitous,’ or ‘attenuated’ contacts,” but instead must be shown by

actions that were purposefully directed at the forum. (Ibid.) Defendants purposefully avail themselves of a forum's benefits if they intentionally direct their activities at a forum such that, by virtue of the benefit the defendants receive, they should reasonably expect to be subject to jurisdiction there. (Van Buskirk v. Van Buskirk (2020) 53 Cal.App.5th 523, 532.) By focusing on the defendants' reasonable expectations, this requirement ensures defendants will not be haled into a jurisdiction solely because of fortuitous or attenuated contacts or because of the unilateral activity of another party. (Ibid.)

Here, American Society has demonstrated that it did not purposefully avail itself to the benefits of California. American Society does not perform medical procedures, conduct business in California, or act as a certifying or accrediting body. (Kehn Decl., ¶ 7, 13, 17.) The mere fact that physicians from California, like Defendant Taban, seek membership from American Society does not amount to purposeful availment.

B.

Minimum Contacts

Specific jurisdiction may only extend "to adjudication of 'issues deriving from, or connected with, the very controversy that establishes jurisdiction.'" (Goodyear Dunlop Tires Operations, S A. v. Brown (2011) 564 U.S. 915, 918-19.). The plaintiff must present facts demonstrating that the conduct of defendants related to the pleaded causes of action is such as to constitute constitutionally cognizable "minimum contacts." (Elkman v. Nat'l States Ins. Co. (2009) 173 Cal.App.4th 1305, 1313.) Jurisdiction is proper if a defendant has minimum contacts with the state such that the lawsuit does not offend traditional notions of fair play and substantial justice. (Van Buskirk, supra, 53 Cal.App.5th at p. 531.)

Here, American Society has demonstrated that it did not have minimum contacts with California that are related to the surgery that gives rise to Plaintiff's claim. Defendant Taban is merely a member of American Society. Before this lawsuit, American Society never received any complaints about Defendant Taban. (Kehn Decl., ¶ 20.) American Society does not perform medical procedures. (Id. at ¶ 17.) American Society does not bill or

collect money from patients for medical services; instead, it provides resources, education, and community for oculofacial plastic surgeons. (Id. at ¶ 21.) American Society had no involvement in or knowledge of the surgery at issue, did not communicate with Plaintiff, and did not provide any services or input related to the alleged incident. (Id. at ¶ 22.) Thus, the alleged surgical incident did not arise out of American Society's minimal contact with California in providing membership to Defendant Taban.

C.

Fair Play and Substantial Justice

Once it has been decided that a defendant has purposefully established minimum contacts with the forum state, the contacts may be considered in light of other factors to determine whether the assertion of personal jurisdiction would comport with fair play and substantial justice. (Burger King Corp., *supra*, 471 U.S. at p. 462.) California has a strong interest in providing a local forum for its residents to redress injuries inflicted by out-of-state defendants. (Daimler Trucks N. Am. LLC v. Superior Ct. (2022) 80 Cal.App.5th 946, 953.) The courts in "appropriate cases may evaluate 'the burden on the defendant,' 'the forum State's interest in adjudicating the dispute,' 'the plaintiff's interest in obtaining convenient and effective relief,' 'the interstate judicial system's interest in obtaining the most efficient resolution of controversies,' and the 'shared interest of the several States in furthering fundamental substantive social policies.'" (Casey v. Hill (2022) 79 Cal. App. 5th 937, 973.)

Here, because American Society has not purposefully availed itself or established minimum contacts with California, it does not comport with fair play and substantial justice to find there is specific jurisdiction over American Society. Because American Society conducts no business in California, is not headquartered in California, and played no part in the surgery at dispute beyond granting Defendant Taban membership to American Society, California does not have a strong interest in adjudicating the dispute. Consequently, the Court does not have specific jurisdiction over American Society.

Because Plaintiff failed to meet his burden and American Society has otherwise demonstrated that the Court lacks general or specific jurisdiction over American Society, the Motion to Quash is granted.

Vexatious
Litigant

American Society claims that Plaintiff has become a vexatious litigant. American Society claims Plaintiff first filed this action on January 6, 2025 as Tufano v. Taban, et al., Case No. 25SMCV00041. American Society contends it moved to quash service of summons, that the Court granted that motion, and that Plaintiff then refiled his lawsuit.

To the extent American Society is requesting the Court to deem the Plaintiff a vexatious litigant, it is beyond the scope of this Motion. American Society would need to file a separate motion to deem Plaintiff a vexatious litigant.

CONCLUSION

For the foregoing reasons, the Court GRANTS the Motion to Quash Summons of Service for Lack of Personal Jurisdiction.

DATED: July 8, 2026 _____

Edward
B. Moreton, Jr.

Judge
of the Superior Court